

Court telephone no.

Plaintiff's/Petitioner's name, address, and telephone no.	v	Defendant's/Respondent's name, address, and telephone no.
In the matter of _____		

MOTION AND AFFIDAVIT

3. I request an order directing _____ to show cause why
Name (type or print)
- ☐ a. he/she should not be found in ☐ civil ☐ criminal contempt of court.
- ☐ b. judgment should not be entered against him/her (as surety/agent) for the full amount of recognizance.
- ☐ c. judgment should not be entered against him/her for failure to file a garnishee disclosure.
- ☐ d. other: _____
4. This affidavit is made on my personal knowledge and, if sworn as a witness, I can testify competently to the facts in this motion and affidavit.

Signature _____

Subscribed and sworn to before me on _____ .
Date

Deputy clerk/Notary public signature

My commission expires on _____ . _____
Name (type or print)

Notary public, State of Michigan, County of _____ . ☐ Acting in the County of _____ .
☐ This notarial act was performed using an electronic notarization system or a remote electronic notarization platform.

ORDER TO SHOW CAUSE

IT IS ORDERED:

5. You must appear before this court on _____ at
Date and time

☐ the court address above

☐ courtroom no. _____

☐ _____

to show cause why

☐ you should not be held in ☐ civil ☐ criminal contempt

☐ for failure to comply with the order of this court as follows:

☐ for the reasons stated in the motion.

☐ a judgment should not be entered against you.

☐ your case should not be dismissed.

☐ other: _____

6. Failure to appear for a contempt hearing may result in a bench warrant being issued for your arrest.

7. A copy of this order must be served ☐ personally ☐ by mail on the person ordered to appear at least _____
days before the hearing. Number

Judge signature and date

If you require accommodations to use the court because of a disability or if you require a foreign language interpreter to help you fully participate in court proceedings, please contact the court immediately to make arrangements.

PROOF OF SERVICE

TO PROCESS SERVER: You must serve copies of the motion, affidavit, and order to show cause and file proof of service with the court clerk. If you are unable to complete service, you must return this original and all copies to the court clerk.

CERTIFICATE OF SERVICE / NONSERVICE

☐ I served ☐ personally ☐ by first-class mail (only if ordered by the court) a copy of the motion, affidavit, and/or order to show cause, together with the attachments listed below, on:

☐ I have attempted to serve a copy of the motion, affidavit, and/or order to show cause, together with the attachments listed below, and have been unable to complete service on:

Defendant's/Respondent's name	Date and time of service
Place or address of service	
Attachments (if any)	

I declare under the penalties of perjury that this certificate of service has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Service fee \$	Miles traveled	Fee \$	
Incorrect address fee \$	Miles traveled	Fee \$	TOTAL FEE \$

Signature _____

Name (type or print) _____

ACKNOWLEDGMENT OF SERVICE

I acknowledge that I have received service of a copy of the motion, affidavit, and/or order to show cause, together with

Attachments (if any) _____ on _____ Date and time

Signature _____ on behalf of _____

Name (type or print) _____

For use by the court clerk only when
the court orders the clerk to serve by mail.

CERTIFICATE OF MAILING

I served a copy of the motion, affidavit, and/or order to show cause on the person ordered to appear by first-class mail addressed to their last-known address as defined by MCR 2.107(C)(3). I declare under the penalties of perjury that this certificate of mailing has been examined by me and that its contents are true to the best of my information, knowledge, and belief.
